

Criminal Law, Investigation and Procedure Victoria
Trial Procedure
Evidence
Evidence Act 2008 (Annotated)
Chapter 3 – Admissibility of Evidence (ss 55–139)
Part 3.2 – Hearsay (ss 59–75)
PART 3.2 COMMENTARY
Last Review: 28/09/2023

[EA.PT3.2.20] Overview

View [pt 3.2 of the Evidence Act 2008 \(Vic\)](#) within the legislation collection.

PART 3.2 COMMENTARY

The approach to hearsay under the Act is a significant departure from the common law. The *UEA* allows in a greater amount of out of court statements and effectively abolishes the distinction between admitting statements for their truth or simply to prove that they were made. Also, unlike the position at common law, implied (ie unintended) assertions are not excluded under the hearsay rule.

The definition of hearsay is not confined to representations made by people other than the witness. It also includes a previous representation made by a witness.

There are several concepts that are essential to understanding the hearsay rule. The main concepts are:

- the meaning of a representation;
- the distinction between implied and express assertions;
- the distinction between a statement being relevant for its truth and simply because it was made; and
- the distinction between first-hand and more remote forms of hearsay.

An overview of the exceptions to the hearsay rule is also important. The exceptions are catalogued in [s 59](#). The main exceptions relevant to criminal proceedings are:

- evidence relevant for a non-hearsay purpose ([s 60](#));
- first-hand hearsay if the maker of the representation is unavailable ([s 65](#)) or available ([s 66](#));
- contemporaneous statements about a person's health etc ([s 66A](#));
- business records ([s 69](#));
- tags and labels ([s 70](#));
- electronic communications ([s 71](#));
- use of evidence in interlocutory proceedings ([s 75](#));
- admissions ([s 81](#));
- exceptions to the rule excluding evidence of judgments and convictions ([s 92\(3\)](#));
- character of and expert opinion about accused persons ([ss 110 and 111](#)).

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